

Court No. - 29

Case :- WRIT - C No. - 14199 of 2013

Petitioner :- Shail Upadhyay And Another

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Anoop Trivedi

Respondent Counsel :- C.S.C., Mayank Agrawal, Shivam Yadav

Hon'ble Sunil Ambwani, J.

Hon'ble Aditya Nath Mittal, J.

Notice on behalf of respondent nos. 1, 2 and 3 has been accepted by learned Standing Counsel. Shri Shivam Yadav has accepted notice on behalf of respondent no.4. Shri Mayank Agrawal appears for respondent no.5.

All the respondents are allowed three weeks' time to file counter affidavit. The petitioners will have two weeks thereafter to file rejoinder affidavit.

List on **7.5.2013**.

Shri Anoop Trivedi, learned counsel appearing for the petitioners submits that the electricity lines were proposed to be laid for increasing the load to M/s B.L. Agro Oils Limited. In the order issued by the Chief Engineer (Distribution) dated 30.6.2012 sanctioning the increase of the load, the alignment indicated at the foot of the Office Memorandum, did not propose to either disturb or utilise petitioners' land. The electricity lines were to be laid underground in alignment with the public road. During the course of construction work carried out by M/s B.L. Agro Oils Limited for laying the lines from 220 KVA feeder to the industry, the alignment was changed, using part of petitioners' land, without their consent.

Shri Anoop Trivedi submits that the Additional District Magistrate (City) Bareilly has completely misdirected the enquiry on the complaint made by the petitioners to stop the laying of lines through their land. He has after recording a finding of fact, that 58 square meters of land of the petitioners has been used for laying the cables after making re-alignment illegally and arbitrarily permitted the use by awarding compensation of Rs.2,63,000/- after working out the valuation of the land and has also directed the petitioners to execute the sale deed in favour of respondent no.5.

Shri Anoop Trivedi submits that the Additional District Magistrate

(City), Bareilly has failed to appreciate that Clause 4.6 (E) (ii) of the U.P. Electricity Supply Code, 2005 does not provide for taking over the land of private owners for electricity lines to be laid for supplying the electricity to a private industry, without obtaining his consent. The provisions of Section 67 of the Electricity Act are applicable to distribution lines for transmitting electricity for public use and not to any industry for private or commercial use.

Shri Mayank Agrawal, appearing for respondent no. 5 submits that the work was sanctioned by the Mandhyanchal Vidyut Vitran Nigam, and was supervised by it. When they found, that it was not possible to maintain the alignment, a small portion of petitioners' land was used for which the Additional District Magistrate (City) was authorised and has granted compensation with directions to execute the sale deed.

Prima facie, we are satisfied that the Additional District Magistrate (City) Bareilly has completely misdirected the enquiries on the complaint and has no authority in respect of laying of the electricity lines to a private industry, to direct the petitioners to execute the sale deed of the land, utilised in such laying of the electricity lines on payment of compensation determined by him. He has no authority to acquire the land or to fix compensation for such use.

Until further orders, the effect and operation of the impugned order dated 27.2.2013 shall remain stayed. The respondents will not energise the electricity lines or supply electricity to M/s B.L. Agro Oils Limited-respondent no.5.

The parties will be at liberty to apply to modify or vacate the interim order, if they enter into any settlement or mutually acceptable terms, or agree for mediation.

Order Date :- 13.3.2013
RKP

Court No. - 29

Case :- WRIT - C No. - 14199 of 2013

Petitioner :- Shail Upadhyay And Another

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- Anoop Trivedi

Counsel for Respondent :- C.S.C., Mayank Agrawal, S.K. Upadhyaya, Shivam Yadav

Hon'ble Sheo Kumar Singh, J.

Hon'ble Brijesh Kumar Srivastava-II, J.

Learned counsel for both sides submitted that the parties have file the compromise.

Be that as it may, we are not going on the merit of the compromise, as both sides requested for dismissal of this petition, as not pressed, we propose to dismiss this petition as not pressed.

Accordingly, this petition is dismissed as not pressed/infructuous.

Interim order, if any, stands vacated.

Order Date :- 7.8.2013

SKS